

		A defendant may serve and file a notice of motion “[t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).) “When a defendant challenges the court's personal jurisdiction on the ground of improper service of process the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.” (<i>Summers v. McClanahan</i> (2006) 140 Cal.App.4th 403, 413.) Personal service requires the personal delivery of a copy of the summons and of the complaint to the person to be served. (Code Civ. Proc. § 415.10.) Here, the proof of service filed with the court indicates Defendant was personally served on 3/12/26 at 5:58 p.m. at 2277 Harbor Blvd #441, Costa Mesa, CA 92626. (ROA 13.) Defendant’s evidence establishes, however, that he relocated to Las Vegas, NV before the purported service date, he was physically in Las Vegas on the purported service date, he did not personally receive the papers at the Costa Mesa address listed in the proof of service, and the papers allegedly served were left at the front door of the Costa Mesa address where a new resident, David Parra, resided at the time. (Quezada Decl., pp. 1-2, Exs. A-E.) Plaintiff has not filed an opposition. Merely filing an exhibit list and exhibits, as Plaintiff has done here (ROA 39), is insufficient. (See Cal. Rules of Court, rule 3.1112(a)(3) [motion must include memorandum in support]; see also Weil & Brown, Cal. Prac. Guide, Civ. Proc. Before Trial, ¶ 9:103, p. 9(I)-C [“The same requirements applicable to the moving papers apply to the declarations and points and authorities filed in opposition to the motion.”].) Therefore, Plaintiff has not met his burden of proving the facts requisite to an effective service. The motion is granted.
5.	GUEVARA VS. ALHALLAQ 2025-01492960	MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT Plaintiff Jens Kevin Guevara’s motion for leave to file a second amended complaint is GRANTED. <u>Legal Standard</u> “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading” (Code Civ. Proc., § 473, subd. (a)(1).) “Motions for leave to amend are directed to the sound discretion of the judge” (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428, citing Code Civ. Proc., § 473, subd. (a)(1).) “[T]he court’s discretion will usually be exercised liberally to permit

amendment of the pleadings The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (*Ibid.*, citations omitted.) “[A]bsent a showing of prejudice to the adverse party, the rule of great liberality in allowing amendment of pleadings will prevail.” (*Board of Trustees v. Superior Court* (2007) 149 Cal.App.4th 1154, 1163.)

California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend must:

- (1) Include a serially numbered copy of the proposed amended pleading;
- (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and
- (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.

California Rules of Court, rule 3.1324, subdivision (b), provides a motion to amend must be accompanied by a declaration setting forth the effect of the amendment, why it is necessary and proper, when facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier.

Plaintiff seeks an order granting leave to file a second amended complaint to substitute two identified Doe defendants.

In support of the motion Plaintiff’s counsel submits a declaration stating that on 3/11/26, approximately one month after filing the first amended complaint, defendant Alhallaq provided Plaintiff with a picture of a temporary insurance card for Hadley Tow and a link to a news article which identified the owners of Hadley Tow and California Heights Tow, Inc. as Mark Fawzi Hassan and Ahmed Fawszi Hassan. (Silverthorne Decl., ¶¶ 6-7.) Plaintiff seeks to add these parties as defendants.

Plaintiff contends Defendants will not be prejudiced as discovery remains open, no trial date has been set, and the proposed amendment does not introduce new theories or factual allegations. Plaintiff has complied with California Rules of Court, rule 3.1324, subdivisions (a) and (b).

Accordingly, the Court GRANTS Plaintiff’s unopposed motion for leave to file a second amended complaint.

Plaintiff is ORDERED to file the second amended complaint within five (5) days.